

Syllabus

Accepting the political explanation as true, as the District Court was required to do in ruling on appellees' summary judgment motion, appellees were not entitled to judgment as a matter of law for a jurisdiction may engage in constitutional political gerrymandering, even if it so happens that the most loyal Democrats happen to be black Democrats and even if those responsible for drawing the district are *conscious* of that fact. See *Bush v. Vera*, 517 U. S. 952, 968. In concluding that the State enacted its districting plan with an impermissible racial motivation, the District Court either credited appellees' asserted inferences over appellants' or did not give appellants the inference they were due. In any event, it was error to resolve the disputed fact of intent at the summary judgment stage. Summary judgment in a plaintiff's favor in a racial gerrymandering case may be awarded even where the claim is sought to be proved by circumstantial evidence. But it is inappropriate when the evidence is susceptible of different interpretations or inferences by the trier of fact. Pp. 546–554.

34 F. Supp. 2d 1029, reversed.

THOMAS, J., delivered the opinion of the Court, in which REHNQUIST, C. J., and O'CONNOR, SCALIA, and KENNEDY, JJ., joined. STEVENS, J., filed an opinion concurring in the judgment, in which SOUTER, GINSBURG, and BREYER, JJ., joined, *post*, p. 555.

Walter E. Dellinger argued the cause for appellants. With him on the briefs were *Michael F. Easley*, Attorney General of North Carolina, *Edwin M. Speas, Jr.*, Chief Deputy Attorney General, *Tiare B. Smiley*, Special Deputy Attorney General, and *Melissa L. Saunders*. *Todd A. Cox*, *Adam Stein*, *Elaine R. Jones*, *Theodore M. Shaw*, *Norman J. Chachkin*, *Jacqueline A. Berrien*, and *Victor A. Bolden* filed briefs for appellants-intervenors *Smallwood et al.*

James A. Feldman argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Waxman*, *Acting Assistant Attorney General Yeomans*, *Deputy Solicitor General Underwood*, *David K. Flynn*, and *Louis E. Peraertz*.

Robinson O. Everett argued the cause for appellees. With him on the brief was *Martin G. McGee*.*

*Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union by *Laughlin McDonald*, *Neil Bradley*, *Cristina Correia*, and *Steven R. Shapiro*; for the Brennan Center for Justice at